



MEMORANDUM OF UNDERSTANDING

Between

[ODOP Cell]

and

[INDIAN INSTITUTE OF PACKAGING , (IIP)]



This Memorandum of Understanding (this "**MoU**") is entered into on, January 24, 2021, by and between:

- (1) ODOP Cell, a nodal body for the implementation of the ODOP Program, under Directorate of Industries, Government of U.P. having its office at First Floor, Niryat Bhawan, 8 Cantt Road, Qiserbagh, Lucknow.
- (2) INDIAN INSTITUTE OF PACKAGING , (IIP), a premier institute under the aegis of Ministry of Commerce, Government of India having its Head Office at Plot E-2 Road No. 8 MIDC Area Andheri East, Mumbai, represented by its Director or its nominee (hereinafter referred to as "IIP") on the other part.

ODOP Cell and Counterparty may hereinafter be referred to as a "**Party**" and collectively, the "**Parties**".

1. POTENTIAL COLLABORATION

The scope of the project involves design & development of the Packaging of the ODOP Products and any other selected Items / Products by ODOP Cell and imparting training in selected districts through workshops (ODOP Artisans/Traders/Manufacturers) on new product packaging (So developed & as accepted by the ODOP Cell). ODOP Cell has shortlisted 15 ODOP Products (for the purpose of this MOU), so as to upgrade their packaging through Design & Development. As per the requirement and to meet the MOU objective, the Scope of Work is to be divided in two parts:

Part I

Design & Development of New Packaging

1.1: SITE VISIT AND SAMPLE COLLECTION

The officials of the institute in collaboration with the ODOP Cell will visit to the manufacturing units of various Districts to collect ODOP Product samples for R&D.

Note: IIP shall arrange for the samples and any cost related to it shall be borne by the institute only.

1.2: DESIGN CONCEPT

Further to the collection of 15 samples, the institute will propose three conceptual structural designs of packaging for each of the ODOP Product and hence there will be 45 proposed designs for the 15 ODOP Products and the same conceptual design will be submitted to the ODOP Cell.

1.3: PREPARATION OF PROTOTYPE OF PACKAGING DESIGN

Further to the feedback from the ODOP Cell, the institute will develop prototype for 2 different options of package design for each ODOP Product and which will be again submitted to the ODOP Cell for approval.

1.4: FINAL DESIGN AND SPECIFICATION

On approval of the final package design form the ODOP Cell, the Institute will formulate the detailed technical packaging specification for the final prototype design with respect to each ODOP Product.

1.5: REPORT SUBMISSION

The report covering the final package designs of the 15 ODOP Products along with their detailed specification will be submitted to the ODOP Cell.

Part II

Workshop cum training Proposal for Stake Holders

1.6: Training

It is important to disseminate the knowledge to the stakeholders (Which shall happen simultaneously for the approved ODOP Products) . To disseminate the information, workshop cum training is an essential tool to implement the outcome of ODOP Product Packaging. The details of proposed workshop cum training are as follows:

Workshop cum training	Two / Three days training
Identification of Cluster	ODOP Cell to identify the Clusters
Identification of Location (Cluster)	ODOP Cell to decide (15 Districts of UP)
No. of participants	20 - 25per batch (IIP to provide time duration of the session)
Dates of the programme	To be decided with mutual understanding between respective offices of IIP and ODOP Cell
Scope of Work	To conduct Two / Three days training Programme with the aim to upgrade the packaging quality for the MSME entrepreneurs for their all over growth in sales and marketing. IIP shall tie-up ODOP units that are interested in adopting the new packaging design with the Packaging units that can help them in procuring new packing material at concessional rates.
Responsibilities of the organizations	
ODOP	Respective ODOP offices under the jurisdiction of the location/cluster will provide the following:-
	Selection of Stake holders(Artisans, Stake holders, Exporters etc.) for participation
INDIAN INSTITUTE OF PACKAGING	
	Preparation of training program schedule as per the cluster requirement and to conduct the training program.
	All technical inputs like presentations by using audio-visuals.
	Providing technical faculty support for the program.
	Preparation of course material for distribution among the participants.
	Samples of packaging materials/packages required for presentation.
	Arrangement of travelling of faculty from IIP office to the location.
	Feedback of the participants.
	A report to be prepared and submitted to the ODOP on the basis of the feedback received from the participants.
Programme schedule for the training programme	
	Inauguration
	Introduction to Packaging and requirements of Packaging
	Innovative packaging materials for product-based packaging for different clusters
	Rigid, Semi-Rigid and Flexible Packaging materials
	Corrugated Fiber Board Boxes – shipping containers
	Concept of Packaging Design
	Workshop
	Mock Demonstration
	Marketing application
	Product wise packaging discussion for the improvement the current packaging of the entrepreneurs.

	Factory visit(s) for on spot observations and suggestions for immediate improvement in packaging of the product which will directly/ indirectly increase the sales of the unit. Benefits of on-spot observations/suggestions will not only be the benefit to that company but will also provide the benefit to other participants.
	* The topics will be identified as per the packaging requirement of the cluster products.

2. PROJECT DURATION:

The project will be executed over a period of 6 months from the date of approval and release of funds by ODOP.

3. DELIVERABLES OF THE PROJECT:

- Part I: The Report Covering the final package designs of the 15 ODOP Products along with their detailed specification will be submitted to the ODOP Cell.
- Part II: New Product Packaging training to be provided to ODOP artisans, traders & manufacturers in all the Districts of UP

4. PROJECT COST AND SCHEDULE OF PAYMENT

- ODOP Product Packaging Development: Cost / Fee for the assignment stated above shall be at par with cost /fee paid by Central & State / Other State Govts to IIP for similar projects.
- ODOP Product Packaging Training:
 - Two Days: As per the charges paid by Central & State Ministries to IIP for similar trainings.
 - Three Days: As per the charges paid by Central & State Ministries to IIP for similar trainings.

5. MODE OF PAYMENT

ODOP shall release 50% of the total cost at the start of the project.

6. FINAL DELIVERABLE

At the end of the project, IIP shall submit to ODOP, a report covering the final package designs of the 15 ODOP Products along with their detailed specification in the form of hard & soft copies as full and final deliverable of the Project.

7. FINAL DELIVERABLE TIME

Duration of execution Time: 6 months.






8. NON-BINDING

The Parties acknowledge and agree that, save for this Clause, Clauses 9 (Confidentiality), 10 (Publicity), 11 (Intellectual Property), 12 (Term and Termination), 13 (Governing Law) and 14 (Third Party Rights), this MoU is intended to be legally binding & sets out the understandings reached by the Parties with respect to the Collaboration set forth in Clause 1 (Potential Collaboration). The understandings reached by the Parties in this MoU shall comprise scope of rights and obligations of each Party and the specific scope, initiatives, terms and conditions, and deliverables of the collaboration shall be further discussed, agreed and confirmed by the Parties by way of definitive or supplemental agreement(s) superseding this MoU.

9. CONFIDENTIALITY

"**Confidential Information**" means the terms of this MoU and all information concerning the Parties or any Party to which another Party is provided access by virtue of its activities as a result of this MoU. Confidential Information does not include information that has been publicly disseminated in writing by the owner, in which the receiving Party can show it knew prior to disclosure, or which was rightfully received by a Party from a third Party without restriction. Confidential Information acquired hereunder by a Party will be treated as proprietary information of the disclosing Party and shall not be used for any purpose other than the collaborations between the Parties or disclosed to any third Party, except such Party's professional advisers, affiliates, consultants, or its employees on a "need to know" basis. No Party shall, without the prior written consent of the disclosing Party, make any public announcement or issue any press release disclosing Confidential Information, provided that any Party may make any disclosure required, in the opinion of its legal counsel, by applicable laws or regulations.

10. PUBLICITY

The Parties agree that, unless expressly agreed to and approved in advance by both Parties, no Party shall make any public announcements or press releases with respect to the relationship or collaboration between the Parties created by this MoU.

11. INTELLECTUAL PROPERTY

Product Packaging Design / Prototypes / Inventions / Ideas so submitted by IIP shall be the Intellectual Property of the ODOP Cell. Also, nothing contained in this MoU shall be construed as granting or conferring, whether by sale, license or otherwise, to a Party (or any of its representatives) any right, title or interest in or to Intellectual Property Rights of the other Party or its affiliates, related parties or licensors. For the purpose of this MoU, "Intellectual Property Rights" shall mean all rights in inventions, patents, trademarks, service marks, trade names, copyrights, data rights, database rights, design rights, domain names, trade secrets, know-how and other intellectual property rights (whether registered or unregistered) and all applications for any of them, anywhere in the world.

12. TERM AND TERMINATION

- 12.1. The Parties agree that this MoU can be terminated on the ground of non-execution by any Party or by mutual consent.
- 12.2. Subject to earlier termination in accordance with Clause 11, this MoU shall take effect from the date first above written and remain valid for (a) two (2) years, or (b) until the date the Parties have entered into the relevant definitive agreement(s) which supersedes this MoU.



13. COUNTERPARTS

This MoU may be signed in counterparts, each of which shall be deemed an original and all of which shall constitute one and the same instrument. This MoU may also be signed and transmitted by e-mail, as a scanned image or PDF, with such signature to be treated as an original and the document transmitted to be considered to have the same binding effect as an original signature on an original document.

14. CONSEQUENCES OF TERMINATION

If for any reasons the parties decide to terminate the agreement prior to the expiry of the prescribed period, IIP shall receive the portion of the fees under ODOP's commitment to the extent of stage/ work completion, duly acknowledged by ODOP Cell, subject to submission of the deliverables up to that stage and the copyright of the design to that extent would remain the property of ODOP Cell. The unspent amount, if any, in proportion of the deliverables mutually agreed by the parties, after deducting the administrative charges of IIP shall be refunded forthwith by IIP.

Termination of this agreement shall not release either party from the obligation to make payment of all amounts then due and/ or payable up to the stage / extent of deliverables submitted by IIP.

Clauses that are interested to survive this agreement and specified as such, shall survive termination of this agreement.

Any termination pursuant to this clause will immediately cease representing to the public any affiliation between them in connection with the subject matter of this Agreement.

15. FORCE MAJEURE

Neither ODOP Cell nor IIP shall be considered in default in performance of its obligations under the terms of this Agreement, if such performance is prevented or delayed for any cause/s beyond the reasonable control of the party affected such as water, hostilities, revolution, riots, civil commotion, strikes, lockouts, epidemic, fire explosion, flood, disturbances of any kind, insurgency in the geographical area of work, earthquake or because of any law and order proclamation, regulations or ordinance of any government or sub-division thereof or because of any act of God or any other cause beyond the control of the concerned party which could not have been foreseen or avoided by the exercise of due diligence and so it becomes impossible of performance, provided notices in writing of any such cases, with necessary evidence that the obligation under the Agreement thereby affected or prevented or delayed is hereby given within 14 days from the happening of the event and in case it is not possible to serve the notice within the said 14 days period, then within the shortest possible period without delay. As soon as the cause of Force Majeure has been removed, the party whose liability to perform its obligation has been affected shall notify the other party the actual delay occurred in such affected activity.

16. INDEMNIFICATION

ODOP Cell agrees to indemnify IIP against any claim that the products and material, ideas, systems, processes created during the course of the Project and used within the scope of this Agreement, infringes any registered copyright or patent provided that: (a) ODOP Cell is given a prompt notice



of the claim; and (b) ODOP Cell is given immediate and complete control over the defenses and/or settlement of the claim and IIP fully co-operates with ODOP in such defense/settlement.

17 ARBITRATION

All disputes and differences arising out of, or in any way touching on or concerning this Agreement shall be settled by mutual consultation, failing which they shall be referred to a sole arbitrator or any persons jointly nominated by the ODOP Cell and Director, IIP. The place of arbitration shall be Lucknow, Uttar Pradesh. The award of such Arbitrator shall be final and binding on the Parties to this Agreement.

18 JURISDICTIONS

Place of signing the Agreement is Lucknow and the courts in Lucknow will have the exclusive jurisdiction in relation to any disputes pertaining to this Agreement.

19 ASSIGNMENT

Neither party shall assign, sub-contract or delegate its rights or obligations under this Agreement without the written consent of the other.

20 ENTIRE AGREEMENT

This Agreement shall be deemed to represent the entire Agreement between the parties hereto regarding the subject matter hereof and shall supersede cancel and replace all or any previous Agreements, writings, or undertakings in this behalf, if any between the parties aforesaid.

21 WAIVERS

The failure of the parties enforces at any time the provisions of this Agreement or any right in respect thereto shall be in no way be considered to be a waiver of such provisions or rights or in any way to affect the validity of this Agreement.

22 SERVICE OF NOTICE

All approvals, consents and notices under this Agreement shall be in writing and may be served by sending the same by Registered Post A.D. or Speed Post addressed to the parties as its last known place of business and such notices shall be deemed to have been given or served at the expiry of seven days from the time of posting the same and in proving service thereof it shall be sufficient to show that the said notice was properly addressed stamped and posted.



23. Governing Law

This MoU shall be governed by and construed in accordance with the Indian laws and dispute if any shall be referred to Hon'ble High Court of Prayagraj, Lucknow bench.

24. NO THIRD-PARTY RIGHTS

Nothing in this MoU, express or implied, is intended to confer upon any person, other than the Parties hereto and their respective successors and assigns, any rights or remedies under or by reason of this MoU, except that the Parties agree that in the event of any enforcement of its rights under this MoU by ODOP Cell, such action may be instituted by ODOP Cell.

IN WITNESS whereof, the Parties below have executed this MoU on the aforementioned day and year.

Signed for and on behalf of
ODOP Cell

Shri Navneet Sehgal,
Additional Chief Secretary,
Department of MSME & Export Promotion,
Government of Uttar Pradesh.

Signed for and on behalf of
IIP

Dr. Tanweer Alam
Director
Indian Institute of Packaging